

Tentative Rulings and Resolution Review Hearings
June 8, 2026
Department 64

This Court does not follow the procedures described in Rules of Court, Rule 3.1308(a). Tentative rulings are available online no less than 12 hours in advance of the time set for hearing. Tentative rulings may be found on the court's website (www.shasta.courts.ca.gov) and are available by clicking on the "Tentative Rulings" link under the "Online Services" tab. A QR code that links to the tentative rulings is posted outside the courtroom. A party is not required to give notice to the Court or other parties of intent to appear to present argument.

Telephonic appearances through CourtCall (888-882-6878; courtcall.com) are generally permitted on the Law & Motion and Resolution Review calendars and can be made without leave of Court.

8:30 a.m. Law and Motion

BARTLETT, ET AL. VS. GENERAL MOTORS LLC
CASE NUMBER: 25CV-0207553

Tentative Ruling on Motion for Attorney Fees and Costs: Plaintiffs Shelby and Edward Bartlett filed this Song-Beverly Consumer Warranty Act case on April 22, 2025, alleging that their 2023 GMC Terrain SLE was defective and that Defendant General Motors, LLC ("GM") failed to conform the vehicle to its written warranty within a reasonable number of repair attempts. The case settled at a group mediation for \$70,000.00. The parties agreed GM would pay Plaintiffs fees, costs, and expenses pursuant to Civ. Code § 1794(d).

Plaintiffs now seek attorney fees of \$25,875 (comprising a lodestar of \$17,250, plus a 0.5 multiplier adding \$8,625) and costs totaling \$1,836.10, for a total award of \$27,711.10. GM opposes the Motion. GM does not dispute that Plaintiffs are entitled to fees and costs. GM argues that: 1) hourly rates are excessive, 2) unreasonable hours should be stricken, 3) estimated fees should be stricken, and 4) no lodestar multiplier is warranted.

Untimely Reply: CCP § 1005(b) provides that all reply papers shall be filed with the court and a copy served on each party at least five court days before the hearing. Plaintiff's Reply was filed with the court only three court days before the hearing and served only four days before the hearing. Leave was not sought and no good cause was provided. The Reply and accompanying Evidentiary Objections are untimely and will not be considered.

Merits: The Song-Beverly Act contains a cost-shifting provision that specifically allows prevailing buyers to recover their costs, including attorney's fees. Civ. C. § 1794(d). The attorney's fee award is limited to the amount the court determines was reasonably incurred by the buyer in commencing and prosecuting the action, based on actual time expended. The prevailing buyer has the burden of proving the fees were both reasonably necessary to conduct the litigation and reasonable in amount. Civil Code § 1794(d); *Robertson v. Fleetwood Travel Trailers of California, Inc.*, (2006) 144 Cal. App. 4th 785. The lodestar method applies to determining attorney's fees under the Song-

Beverly Act. *Id.* at 817. When determining a reasonable attorney's fee award, using the lodestar method, the judge begins by deciding the reasonable hours the prevailing party's attorney spent on the case and multiplies that number by the prevailing hourly rate for private attorneys in the community who conduct non-contingent litigation of the same type. *Doppes v Bentley Motors, Inc.* (2009) 174 CA4th 967, 998.

Reasonableness of Hours: The court has discretion to decide which of the hours expended by the attorneys were reasonably spent on litigation. *Hammond v. Agran* (2002) 99 Cal.App.4th 115, 133. The predicate of any attorney fee award is the necessity and usefulness of the conduct for which compensation is sought. *Thayer v. Wells Fargo Bank, N.A.* (2001) 92 Cal.App.4th 819, 846. The court's focus in evaluating the fee request should be to provide a fee award reasonably designed to completely compensate attorneys for the services provided. The starting point for this determination is the attorney's time records. Absent clear indication they are erroneous, verified time records are entitled to credence. *Horsford v. Board of Trustees of Calif. State Univ.* (2005) 132 Cal.App.4th 359, 395-397.

GM asks the Court to strike or reduce "several categories of unreasonable time entries as identified in Exhibit A to the Declaration of Marissa Rodriguez." The attached Exhibit A generally highlights numerous time entries without specific explanation or argument as to their alleged unreasonableness. GM's Opposition does specifically argue that entries from September 24, 2025 and September 25, 2025 should be stricken because the time was incurred after the case settled at September 15, 2025 mediation. The Reply does not address this issue. The Court has carefully reviewed the billing entries. It does appear that Attorney Murray billed time for working on discovery and disclosures after the matter had settled, because he was not informed of the status of the case. A September 25, 2025 entry states that counsel discovered that the case had settled at mediation, consulted with a managing attorney to confirm, and then undertook tasks to cancel a PMK deposition he had just worked to set up. The Court finds that it is unreasonable to bill for this time that was improperly incurred due to apparent miscommunication within the Plaintiffs' firm. The Court will therefore reduce the time by 3.4 hours.

GM also objects to the anticipatory fee request of \$4,687.50 comprising 7.5 attorney hours at a rate of \$625 per hour for review of the Defendant's Opposition and preparation of a Reply (5 hours), and for preparation and attendance at the hearing (2.5 hours). Plaintiff's Reply was not timely filed, so the Court will reduce the hours by 5.

The Declaration of Daghighan provides that 29.4 hours were billed in total. The Court will reduce that by 8.4 hours as detailed above for a total award of 21 hours.

Reasonableness of Rates: A reasonable hourly rate is determined by the prevailing rate charged to attorneys of similar skill and experience in the relevant community. See *PLCM Group, Inc. v. Drexler* (2000) 22 Cal.4th 1084, 1095. However, the court may also consider the attorney's skill and expertise, the nature of the work performed, the relevant area of expertise and the attorney's customary billing rates. *Flannery v. California Highway Patrol* (1998) 61 Cal.App.4th 629, 632. A plaintiff seeking to recover hourly rates for out-of-town counsel that are higher than the local rates must show (1) a good faith effort to find local counsel, and (2) demonstrate that hiring local counsel was impracticable. *Nichols v. City of Taft* (2007) 155 Cal.App.4th 1233, 1243.

Here, Plaintiff's counsel seeks approval of rates ranging from \$700 for the senior partner, to \$550

for an associate. Counsel provides details on each attorney's education and experience. Counsel also supports their requested rates by referring to two rate surveys as well as other courts where their rates have been approved. However, no evidence has been presented that a good faith effort to find local counsel was made, or to demonstrate that hiring local counsel was impracticable. Further, no evidence has been presented that a comparable, smaller-market court like Shasta has approved the rates sought. For those reasons, the Court exercises its discretion to approve the rate of \$400 per hour, which is at the high end of prevailing rates charged by attorneys of similar skill and experience in this community.

Multiplier: The amount of attorney fees awarded pursuant to the lodestar adjustment method may be increased or decreased. Such an adjustment is commonly referred to as a "fee enhancement" or "multiplier." (*Ketchum v. Moses* (2001) 24 Cal.4th 1122, 1132 (*Ketchum*).) The trial court is neither foreclosed from, nor required to, award a multiplier. ... The Supreme Court has "set forth a number of factors the trial court may consider in adjusting the lodestar figure. These include: '(1) the novelty and difficulty of the questions involved, and the skill displayed in presenting them; (2) the extent to which the nature of the litigation precluded other employment by the attorneys; [and] (3) the contingent nature of the fee award, both from the point of view of eventual victory on the merits and the point of view of establishing eligibility for an award.'" *Mikhaeilpoor v. BMW of North America, LLC* (2020) 48 Cal.App.5th 240, 247-248.

Here, the Court declines to adjust the lodestar with a multiplier. This is a straightforward lemon law action which settled at mediation early in the case. No discovery or motion practice were undertaken. While the Court acknowledges the attorneys' skill and experience in this practice area, the case did not present novel and difficult questions or unusual skill in presentation. The nature of the litigation was within counsels' standard practice and did not preclude other employment. Finally, the contingent risk and delay in payment are standard in lemon law actions, and the delay was not unusually long or unexpected.

Costs and Expenses: The Song-Beverly Act provides that the court will award a successful plaintiff a sum equal to the aggregate amount of costs and expenses, which have been determined to have been reasonably incurred. Civ. C. § 1794(d). Plaintiff filed a detailed expense report. GM does not object to any costs. Total costs are \$1,836.10. Costs appear reasonably incurred and will be awarded.

The motion for attorney fees and costs is **GRANTED**. Attorney fees of \$8,400.00 and costs of \$1,836.10 are awarded, for a total of \$10,236.10. A proposed order has been lodged and will be modified.

LOZANO VS. CALIFORNIA TOWING & TRANSPORT, ET AL.
CASE NUMBER: 25CV-0208662

Tentative Ruling on Demurrer: Defendant City of Shasta Lake ("City") demurs to the First Amended Complaint filed on February 27, 2026 on the grounds that the Second, Third, Fifth, and Seventh Causes of Action fail to state a claim upon which relief may be granted. The Demurrer is unopposed.

On May 4, 2026, Plaintiff filed a Second Amended Complaint ("SAC"). Plaintiff did not seek or obtain leave of court to file the SAC, as required by Cal. Code of Civ. Pro. section 472. There is no proof of service of the SAC on file. The City of Shasta Lake is not named as a Defendant in